

TEMPORARY CONSTRUCTION EASEMENT AGREEMENT

THIS TEMPORARY CONSTRUCTION EASEMENT ("Agreement") is made this 4 day of June, 2018, between Mr. E.J. Harmon a/k/a Joe Harmon, an individual, with address 7911 Archies Road, Cheyenne, Wyoming 82001 ("Grantor") and the City of Cheyenne, Wyoming, a municipal corporation, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("Grantee"). Both Grantor and Grantee are collectively referred to as "Parties." The Parties agree as follows:

1. **Grant.** For and in consideration of *One Thousand Fifty-Eight Dollars and No Cents (\$1,058.00)* and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Grantor hereby grants and conveys unto Grantee, and its agents and contractors, a temporary easement for construction purposes in connection with the construction of Christensen Road ("Easement Rights"), located within the area depicted in the attached Exhibit A and described as follows:

A portion of Tract 27, Foster Tracts, Laramie County, Wyoming, more particularly described as follows:

Beginning at a point on the east line of Tract 27, from which the southeast corner thereof bears S.00°06'56"W., a distance of 404.18 feet; thence N.89°53'04"W., a distance of 113.61 feet; thence, N00°06'56"E, a distance of 150.74 feet; thence N65°20'49"E, a distance of 125.12 feet to the east line of Tract 27; thence S.00°06'56"W., along the east line, a distance of 203.16 feet to the point of beginning. Containing 20,102 square feet, more or less.

2. **Additional Consideration.** As additional consideration for the temporary construction easement, the Grantee agrees to construct an approach to Christensen Road, described as follows. It is mutually understood and agreed that the Grantor currently has an access to his land through a gate located on the boundary of the right-of-way of Christensen Road. Grantee will, at its expense, move the gate and access to another location on Grantor's land adjacent to Christensen Road to replace the access point currently located on Grantor's property and the Christensen Road right-of-way. The Grantor hereby grants to the Grantee permission to enter upon Grantor's adjacent land beyond the right-of-way line to construct, taper, and blend the approach, install the gate and connect existing trails, roads, or lands, as depicted at Exhibit A.

3. **Use.** The Grantor hereby grants to Grantee and its agents and contractors, said temporary construction easement area, as described above and depicted in Exhibit A, attached hereto and incorporated as if fully set forth, such use to include the right of ingress and egress, and also the right to temporarily operate equipment upon the above described land.

4. **Term.** The permission granted herein shall become effective upon the issuance of a Notice to Proceed pursuant to the general contract for the construction of the Christensen Road overpass and Corridor and said permission shall remain in full force and effect for a period of two (2) years thereafter.

5. Maintenance Provision. Grantee shall be responsible for all maintenance of the temporary construction easement area during its use and shall restore the temporary construction easement area to a condition equal to its state before its use the purposes identified herein. Consistent with this restoration plan, upon completed use of the temporary construction easement area, the disturbed area will be sloped, blended, and seeded or sodded, by the City to restore the temporary construction area to a condition equal to its state before its use the purposes identified herein.

6. Miscellaneous. Except for enforcement of the terms and conditions of this Agreement as between the Parties, the Grantee reserves all immunities and defenses available under the Wyoming Governmental Claims Act, W.S. §§ 1-39-101, *et seq.*, and other applicable laws. This Agreement is not intended to bestow third party beneficiary rights on any person or entity not a party to this instrument. This instrument is governed by the laws of the State of Wyoming and any disputes relating to this instrument shall be brought only in a court of competent jurisdiction sitting in Laramie County, Wyoming.

TO HAVE AND TO HOLD the easement rights described herein unto the Grantee, Grantee's legal representatives, agents, and contractors, for the term described herein.

IN WITNESS WHEREOF, Grantor has hereunto set its hand this 4 day of June, 2018.

GRANTOR

By: [Signature]
Mr. E.J. Harmon a/k/a Joe Harmon

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

On this 4th day of June in the year 2018, before me, the undersigned notary public, personally appeared Mr. E.J. Harmon a/k/a Joe Harmon, an individual, and acknowledged that he executed the same for the purposes therein contained.

In witness whereof, I hereunto set my hand and official seal. The foregoing instrument was acknowledged before me this 4th day of June, 2018.

My commission expires: 02/11/2020



Date

[Signature]
Notary Public

EXHIBIT A

*Legal Description and Depiction attached to Temporary Construction Easement Agreement
between Mr. E.J. Harmon a/k/a Joe Harmon and the City of Cheyenne, Wyoming*

EXHIBIT "A"

TEMPORARY CONSTRUCTION EASEMENT DESCRIPTION

A temporary easement for construction purposes being a portion of Tract 27, Foster Tracts, Laramie County, Wyoming, more particularly described as follows:

Beginning at a point on the east line of Tract 27, from which the southeast corner thereof bears S.00° 06' 56"W., a distance of 404.18 feet; thence N.89° 53' 04"W., a distance of 113.61 feet; thence N.00° 06' 56"E., a distance of 150.74 feet; thence N.65° 20' 49"E., a distance of 125.12 feet to the east line of Tract 27; thence S.00° 06' 56"W., along the east line, a distance of 203.16 feet to the Point of Beginning. Containing 20,102 square feet, more or less.

EXHIBIT FOR
TEMPORARY CONSTRUCTION EASEMENT
TRACT 27,
FOSTER TRACTS,
LARAMIE COUNTY, WYOMING.
Date prepared: 06-25-14

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STEEL SURVEYING SERVICES, LLC
REGISTERED LAND SURVEYORS

2102 W. 19th ST. CHEYENNE, WY. 82001 (307)634-7878

REV 10-3-15

2015/10/31/15:00 TO 17:00 LARAMIE COUNTY

EXHIBIT "A"

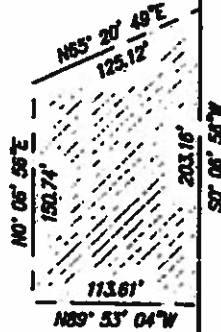
TRACT 2
FOSTER TRACTS

ARCHIES ROAD (60' R/W)

TRACT 27
FOSTER TRACTS

UNPLATTED

UNPLATTED



CHRISTENSEN ROAD (80' R/W)

TRACT 26
FOSTER TRACTS



TATE ROAD (40' R/W)

UPRR 400' R/W



AREA
20,102 SQ. FT. +/-

0 100'
Scale: 1"=100'

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REV 10-3-15



EXHIBIT FOR
TEMPORARY CONSTRUCTION EASEMENT
TRACT 27,
FOSTER TRACTS,
LARAMIE COUNTY, WYOMING.
Date prepared: 06-25-14

STEEL SURVEYING SERVICES, LLC
REGISTERED LAND SURVEYORS

1102 W. 10th ST. CHEYENNE, WY. 82001 (307)634-1171

LEGEND

--- PROPERTY OF CITY

--- EXISTING ROADWAY

--- NEW ROADWAY

--- EXISTING SIDEWALK

--- NEW SIDEWALK

--- EXISTING BIKEWAY

--- NEW BIKEWAY

--- EXISTING FUTURE ROADWAY

--- EXISTING FUTURE SIDEWALK

--- EXISTING FUTURE BIKEWAY

--- EXISTING FUTURE ROADWAY

--- EXISTING FUTURE SIDEWALK

--- EXISTING FUTURE BIKEWAY

